

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement") is entered into and effective as of the date of signature below (the "Effective Date") between:

Ambionic B.V., a company organised under the laws of The Netherlands, registered with the Chamber of Commerce under number 98327933, with its registered office at Bakkerstraat 39A, 3082 HB Rotterdam, The Netherlands, represented by Mr. Gaurav Genani (the "**Disclosing Party**");

and

Name: _____

Company: _____

Address: _____

Email: _____

(the "Receiving Party").

Each a "Party" and together the "Parties".

Purpose

The Disclosing Party wishes to make non-public information available to the Receiving Party so that the Receiving Party may review and evaluate a fully compliant robotic gripper developed by Ambionic B.V., including technology and project information directly related to that gripper, and provide feedback (the "Purpose").

Article 1 — Objective

- 1.1 The Disclosing Party may disclose information it considers useful for the Purpose. Confidential Information received by the Receiving Party shall be used only for the Purpose.
- 1.2 Nothing in this Agreement requires the Disclosing Party to disclose information, or either Party to enter into any collaboration, transaction, partnership, joint venture or other business relationship.

Article 2 — Confidential Information

- 2.1 "Confidential Information" means any non-public information relating to the Purpose that is disclosed by or on behalf of the Disclosing Party, in any form, and that is either identified as confidential or that a reasonable person would understand to be confidential from its nature or the circumstances of disclosure. This includes, without limitation, technical information, know-how, designs, drawings, prototypes, images, video, software, methods, test results, commercial information and project information.
- 2.2 Confidential Information does not need to carry a particular stamp, legend or marking in order to be protected under this Agreement.
- 2.3 Confidential Information and any intellectual property rights in it remain with the Disclosing Party. No licence or other intellectual property right is granted by disclosure under this Agreement.
- 2.4 Nothing in this Agreement limits any protection that Confidential Information may have as a trade secret under applicable law.

Article 3 — Obligations of the Receiving Party

- 3.1 The Receiving Party shall protect Confidential Information with at least reasonable care and shall not use it for any purpose other than the Purpose.

- 3.2 The Receiving Party may disclose Confidential Information to its employees and to advisers or contractors who need to know it for the Purpose and who are subject to confidentiality obligations. It shall not otherwise disclose Confidential Information to a third party without the prior written consent of the Disclosing Party.
- 3.3 The Receiving Party shall not publish, post, forward or otherwise make available any Confidential Information, including any access link, password or credential provided for the Purpose.
- 3.4 If the Receiving Party becomes aware of an unauthorised disclosure, it shall promptly inform the Disclosing Party and take reasonable steps to prevent further disclosure.
- 3.5 If disclosure is required by law, regulation or court order, the Receiving Party may disclose only what is required and, to the extent legally permitted, shall promptly inform the Disclosing Party.

Article 4 — Exceptions

The obligations in this Agreement do not apply to information which the Receiving Party can reasonably demonstrate:

- a) is or becomes public other than through a breach of this Agreement;
- b) was lawfully known to the Receiving Party before it was disclosed by the Disclosing Party;
- c) was lawfully received from a third party without a confidentiality obligation;
- d) was independently developed without use of the Confidential Information; or
- e) is disclosed or used with the Disclosing Party's prior written approval.

Article 5 — Return or Destruction

- 5.1 At the written request of the Disclosing Party, the Receiving Party shall within thirty (30) calendar days return or destroy the Confidential Information in its possession or control that can reasonably be returned or destroyed.

Article 6 — Term

- 6.1 This Agreement is effective from the Effective Date and remains in force for three (3) years from that date. It applies to Confidential Information disclosed from the Effective Date onwards.
- 6.2 Either Party may terminate this Agreement at any time by giving thirty (30) calendar days written notice to the other Party.
- 6.3 The confidentiality and use obligations in Article 3 continue for three (3) years after expiry or termination of this Agreement.

Article 7 — General

- 7.1 This Agreement contains the entire understanding between the Parties concerning confidentiality for the Purpose and may be amended only in writing signed by both Parties.
- 7.2 If any provision of this Agreement is held invalid or unenforceable, the remaining provisions remain in effect.

Article 8 — Governing Law and Disputes

- 8.1 This Agreement is governed by the laws of The Netherlands.
- 8.2 If a dispute arises in connection with this Agreement, the Parties shall first try in good faith to resolve it between themselves. If the dispute is not resolved within thirty (30) calendar days after written notice of the dispute, it shall be settled in accordance with the Arbitration Rules of the Netherlands Arbitration Institute (NAI) by one arbitrator. The seat of arbitration shall be Rotterdam, The Netherlands, and the proceedings shall be conducted in English.

Agreed and signed by the authorised representatives of the Parties:

For Ambionic B.V.

Name: Mr. Gaurav Genani

Signature: _____

Date: _____

For the Receiving Party

Name: _____

Signature: _____

Date: _____